

Apart from the specific legislation governing arrival/departure of aircraft, section 25(3) of the Customs Act 2015 relating to smuggling also applies.

While points (i) to (iv) above set out the legal position generally, the effect of the Single Market has been to dilute these requirements somewhat in the context of intra-Union flights – see [paragraph 5.2](#) below.

Where an offence may have been committed, officers are to be guided by the instructions contained in the Customs and Excise Enforcement Procedures Manual at all times.

5.1.2 Relations with airport officials and others

Staff are to ensure that the official Customs presence in airports does not give rise to friction with airport or airline staff, other service agencies or travellers. Officers are to exercise their powers with discretion and tact and in accordance with guidelines relating to the exercise of these powers. Officers should ensure that the Charter of Rights is adhered to in all dealings with Revenue customers.

As part of Revenue's on-going trade facilitation initiative, an MOU (Memorandum of Understanding) programme has been undertaken. Under this programme, a number of MOUs have been concluded with air transport operators and airport authorities. Such MOUs are agreed by the Customs Liaison and Joint Operations – Drug Law Enforcement Unit, and on completion are serviced and monitored by nominated Customs Liaison Officers in the Divisions.

Further details on these partnership agreements and the list of Customs Liaison Officers nominated to liaise with companies regarding MOUs are available from Customs Liaison and Joint Operations – Customs Drugs Law Enforcement Unit, Investigation, Prosecution and Frontier Management Division, Ashtowngate, Navan Rd, Dublin 15 Intra-Community Flights and Traffic

5.2.1 Effect of Law

General

Normal Customs controls do not apply in respect of intra-Union flights unless:

- Third country goods are carried on board.
- Stores are carried on board.
- Passengers are on board who have originated in a non-EU country and have not been cleared at another EU airport.
- Goods carried on board are being exported to a third country.
- Customs intervention is necessary for purposes connected with the enforcement of a prohibition or restriction on importation or exportation.